

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, JUNE 5, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**JUSTIN J. PUTNEY vs. SONIA, INC.; ET AL.
Case No. CU24-00694**

Motion for Preliminary Approval of PAGA and Class Action Settlement

TENTATIVE RULING

The Parties and any interested persons are to appear.

The Parties should be prepared to discuss paragraph 45 of the settlement agreement, “escalator provision.”

**ISABEL ROBLES; ET AL. vs. FORD MOTOR COMPANY; ET AL.
Case No. CU24-06043**

Motion by Defendant FORD MOTOR COMPANY for Summary Adjudication (of 6th Cause of Action for Fraudulent Inducement- Concealment)

TENTATIVE RULING

A defendant moving for summary judgment or summary adjudication of a cause of action has the burden of negating a necessary element of a cause of action, or establishing the evidence required for an affirmative defense. C.C.P. §437c(p)(2).

The elements of a fraudulent inducement-concealment cause of action include the concealing of a material fact by the defendant (known at the relevant time by the

defendant but not known by the plaintiff). Moncada v. West Coast Quartz Corp. (2013) 221 Cal.App.4th 768, 775; Boschma v. Home Loan Center, Inc. (2011) 198 Cal.App.4th 230, 248.

This element can be met in a lemon law case by evidence available only to the manufacturer defendant, such as early consumer complaints, testing data, and repair information about a claimed defect. Mui Ho v. Toyota Motor Corp. (N.D.Cal. 2013) 931 F.Supp.2d 987, 998 [allegations in the complaint that the manufacturer defendant had “non-public, internal data about . . . headlamp problems, including pre-release testing data, early consumer complaints about the defect to the defendant’s dealerships, dealership repair orders, and conducted testing was sufficient to overcome a pleading challenge].

Still, the defendant need not have sole knowledge of the material fact being concealed. It is enough if the defendant has superior knowledge to that of the plaintiff of that material fact. Edwards v. FCA US LLC (N.D.Cal. 2022) 2022 U.S.Dist.LEXIS 98891, *9. Plaintiffs alleged in the complaint that FORD knew of problems with the 10-speed transmission system installed in Plaintiff’s 2019 F150 truck at time of Plaintiffs’ purchase (and that Plaintiffs did not). But pleading is one thing; proof with actual admissible evidence is another.

A defendant moving for summary judgment or adjudication can negate a necessary element of a cause of action by providing factually devoid discovery responses made by the plaintiff as to that element.

A moving defendant may rely on factually devoid discovery responses to shift the burden of proof pursuant to section 437c, subdivision (o)(2) [now subdivision (p)(2)]. Once the burden shifts as a result of the factually devoid discovery responses, the plaintiff must set forth the specific facts which prove the existence of a triable issue of material fact. Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 590.

As another court explained, to find otherwise would improperly encourage parties to avoid providing substantive responses to discovery:

Parties have a duty to respond to discovery requests “as completely and straightforwardly as possible given the information available to them.” (Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 580, fn. 3 [37 Cal. Rptr. 2d 653].) When defendants conduct comprehensive discovery, plaintiffs cannot play “hide the ball.” Moreover, it is not reasonable for courts to infer pursuant to Code of Civil Procedure section 437c, subdivision (c), that defendants can discover further material facts from plaintiffs’ lists of people and documents if the plaintiffs do not disclose any facts known by such persons or contained in such documents when asked to do so. In moving for summary judgment, “[t]he defendant may . . . present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence—as through admissions by the plaintiff following extensive discovery to the effect that he has discovered

nothing.” (Aguilar, supra, 25 Cal.4th at p. 855.) If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiffs’ factually devoid discovery responses . . . To find otherwise . . . would also encourage wild-goose chases that undermine the purpose of our modern discovery rules. Andrews v. Foster Wheeler LLC (2026) 138 Cal.App.4th 96, 106-107 and 107 n. 3.

See also Leslie G. v. Perry & Associates (1996) 43 Cal.App.4th 472, 482, which stated:

Under the current version of the summary judgment statute, a moving defendant need not support his motion with affirmative evidence negating an essential element of the responding party’s case. Instead, the moving defendant may (through factually vague discovery responses or otherwise) point to the absence of evidence to support the plaintiff’s case. When that is done, the burden shifts to the plaintiff to present evidence showing there is a triable issue of material fact. If the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial. (Code Civ. Proc., § 437c, subd. (o)(2); Union Bank v. Superior Court (1995) 31 Cal. App. 4th 573, 590 [37 Cal. Rptr. 2d 653]; Villa v. McFerren (1995) 35 Cal. App. 4th 733, 748-749 [41 Cal. Rptr. 2d 719]; Hunter v. Pacific Mechanical Corp. (1995) 37 Cal. App. 4th 1282, 1286-1288 [44 Cal. Rptr. 2d 335].)

FORD presented evidence that it propounded special interrogatories and requests for production, asking Plaintiffs to identify all evidence supporting the fraudulent inducement-concealment cause of action, and that the responses by Plaintiffs were factually devoid.

The burden therefore shifted to Plaintiffs, to present evidence sufficient to create a triable issue of material fact as to FORD’s knowledge prior to Plaintiff’s purchase of (unfixable) defects in the 10-speed transmissions used in Plaintiffs’ F150.

Plaintiffs cannot use the allegations raised in their complaint to meet that shifted burden on them to produce evidence sufficient to support the existence of a triable issue of material fact. Romak Iron Works v. Prudential Ins. Co. (1980) 104 Cal.App.3d 767, 775 [“a party may not rely on his own pleading as a factual source on a motion for summary judgment”].

The declaration of Plaintiffs’ counsel discussed discovery issues, but provided no evidence, admissible or otherwise, to show that at time of Plaintiffs’ purchase, FORD knew of non-remediable defects with the design or manufacture of the 10-speed transmission system installed in 2019 F150 trucks.

To the extent Plaintiffs' opposition asked the court to take judicial notice of the existence on a website for the National Highway Traffic Safety Administration (NHTSA) of three technical service bulletins (TSBs) allegedly issued by FORD to vehicle service providers, the court finds this insufficient to establish FORD's knowledge of non-remediable defects.

Preliminarily, the court notes that one of the three TSBs is dated a year after Plaintiffs' purchase of the 2019 F150 truck.

As to the other two TSBs:

The court can only take judicial notice of the existence of the documents on the website, not the truth of the matters asserted.

While we may take judicial notice of the existence of the audit report, Web sites, and blogs, we may not accept their contents as true. (Unruh-Haxton v. Regents of University of California (2008) 162 Cal.App.4th 343, 364 [76 Cal. Rptr. 3d 146].) "When judicial notice is taken of a document, however, the truthfulness and proper interpretation of the document are disputable. [Citation.]" (StorMedia Inc. v. Superior Court (1999) 20 Cal.4th 449, 457, fn. 9 [84 Cal. Rptr. 2d 843, 976 P.2d 214].) Ragland v. U.S. Bank National Assn. (2012) 209 Cal.App.4th 182, 193.

Furthermore, even if the contents of those two TSBs could be considered, they do not confirm FORD's knowledge of any non-remediable defects, nor that there were no material changes made to the design or manufacture of the 10-speed transmission for the vehicles addressed by those TSBs for the 10-speed transmission system installed in 2019 F150s.

The court has some concern about FORD's initial objections to the notice of PMK deposition inclusive of requests for production of documents Plaintiffs served back in October 2024, and disagrees with FORD's position that any discovery about vehicles manufactured in different years or in different models with a 10-speed transmission system was precluded as not reasonably calculated to lead to the discovery of admissible evidence. But Plaintiffs failed to pursue a motion to compel, even after FORD filed this motion in November 2025, and despite the court's continuance of this hearing for four months to allow Plaintiffs more time. Under these circumstances, it is Plaintiffs who are primarily to blame for their failure to present in opposition to this motion any foundational evidence necessary to create a triable issue of material fact on this cause of action.

The court therefore grants FORD's motion for summary adjudication of the fraudulent inducement-concealment cause of action.

THE FISHER FAMILY TRUST vs. TIMOTHY LEFEVER
Case No. CU25-03733

Demurrer and Motion to Strike re: First Amended Complaint

TENTATIVE RULING

On the Court's own motion, the hearing on Defendant LEFEVER's demurrer, motion to strike as to the first amended complaint, and the case management conference is continued to June 16, 2026 at 9:00 a.m.

SYDNEY NACHOR; ET AL. vs. JEFFCO PAINTING AND COATING, INC.; ET AL.
Case No. CU25-04265

JEFFCO's Demurrer

TENTATIVE RULING

Defendant JEFFCO PAINTING & COATING, INC.'s ("JEFFCO") demurrers to Plaintiffs SYDNEY NACHOR and TRACY NACHOR's first amended complaint in case CU25-04265 and Plaintiff RAYMUNDO CAMARENA's first amended complaint in case CU25-05331 previously came on for hearing on March 24, 2026. At that time the court continued the hearing to its present date to afford Plaintiffs an opportunity to submit evidence on the issue of whether the amended complaints are sham pleadings. JEFFCO was also afforded the opportunity to file a response to any such submission from Plaintiffs. The court has since received a supplemental declaration from Plaintiffs and a response to that declaration from JEFFCO.

Sham Pleading Doctrine. Under the sham pleading doctrine, plaintiffs are forbidden to amend complaints to omit harmful allegations from previous complaints or add allegations inconsistent with those of earlier complaints, unless a satisfactory explanation for the changes is made. (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425 (*Deveny*).) If a party attempts to avoid the defects of an earlier complaint by filing an amended complaint with such unexplained omissions or additions the court may take judicial notice of the earlier pleading and disregard inconsistent allegations. (*Colapinto v. County of Riverside* (1991) 230 Cal.App.3d 147, 151.)

The CU25-04265 1AC and CU25-05331 1AC alike reverse allegations from their original versions that indicate that the incident occurred while they and RAYMUNDO DANIEL CAMARENA was in the course and scope of employment with JEFFCO, which raised a question of worker's compensation exclusivity. Plaintiffs have supplied admissible evidence explaining the change in allegations. The court finds the evidence that Plaintiffs' original "course and scope of employment" language was erroneously used as part of templated pleading persuasive. The court finds that the sham pleading doctrine does not invalidate either of the complaints.

JEFFCO's demurrers are overruled.

MARIA ELENA JIMERSON vs. VACAVILLE UNIFIED SCHOOL DISTRICT; ET AL.
Case No. CU25-05542

- 1). Demurrer to Complaint; and
- 2). Motion to Strike Punitive Damage Allegations in Complaint

TENTATIVE RULING

On May 21, 2026, the Parties entered into a stipulation to dismiss all individual defendants, the second cause of action alleging harassment, and the claim for punitive damages. As such, the Defendant's demurrer and motion to strike as to these claims are moot.

As to the balance of the demurrer of remaining defendant VACAVILLE UNIFIED SCHOOL DISTRICT ("VUSD") to the remaining five causes of action alleged against it in the complaint is overruled.

As to the 1st cause of action for disability discrimination, the prima facie elements are a disability of a person otherwise qualified, causing him/her to suffer an adverse employment action, because the employer knew of the disability and harbored discriminatory intent. Avila v. Continental Airlines, Inc. (2008) 165 Cal.App.4th 1237, 1246.

The complaint alleged that VUSD's HR director terminated Plaintiff's employment [¶14], which is clearly an adverse employment action. Other paragraphs of the complaint [¶¶13a, 13c, 13d, 13e] allege that Plaintiff provided Defendants with doctors notes and work restrictions (regarding her herniated discs, alleged with particularity in ¶¶13a and 13d). Paragraphs 13f and 13g allege that Plaintiff requested a transfer, and was denied this and never offered any reasonable accommodation. Paragraph 22 alleged that Plaintiff's perceived/actual disability and/or other protected characteristics "were substantial motivating reasons" in VUSD's decision to terminate her employment.

As to the 3rd cause of action for retaliation, the elements include that the plaintiff engaged in protected activity, and suffered an adverse employment action as a result. Yanowitz v. L'Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1042.

Protected activity is defined as opposing any practices forbidden under FEHA. Government Code §12940(h) makes actionable:

For any employer, labor organization, employment agency, or person to discharge, expel, or otherwise discriminate against any person because the person has opposed any practices forbidden under this part or because the

person has filed a complaint, testified, or assisted in any proceeding under this part.

It is enough that an employee complain informally to a supervisor that he or she is being discriminated against, if that employee later suffers an adverse employment action that they claim was made because they complained.

An employee's formal or informal complaints to a supervisor regarding unlawful discrimination is a "protected activity" and actions taken against the employee after such complaints may constitute retaliation. It is immaterial whether the employee's complaints were well-founded. "Protected activity" includes opposing conduct that the employee reasonably and in good faith believed to be discriminatory, whether or not the conduct is ultimately deemed to violate the FEHA. [Wawrzenski v. United Airlines, Inc (2024) 106 CA5th 663, 699-700, 327 CR3d 245, 279—bringing concerns to manager on multiple occasions sufficient to constitute protective activity; formal complaint through official channels not required; Passantino v. Johnson & Johnson Consumer Products, Inc. (9th Cir. 2000) 212 F3d 493, 506-507 (construing Title VII retaliation claim)]. California Practice Guide (The Rutter Group), Employment Litigation, §5:1489.

Plaintiff's complaint alleges that she requested a reasonable accommodation to transfer positions in March 2022 [¶13f]; when effectively denied the transfer, had to use her sick leave to recover from being forced to work in her current position [¶13f]; had taken three months off work, often unpaid, to recover [¶13g]; told an HR employee who called that she was not home by choice, but because she requested reasonable accommodations due to her medical condition and restrictions and was denied [¶13g]; and was thereafter called in to a meeting where the HR director "terminated Plaintiff's employment stating that the safety and protection of school children could not be ensured by Plaintiff (if she were to return to her job)" [¶14].

As to the 4th cause of action for failure to provide reasonable accommodation, and the 5th cause of action for failure to engage in the interactive process:

Disability discrimination law imposes a duty on an employer to engage in an interactive process in good faith when an employee makes the employer aware of the disability and the limitation(s) caused by the disability. The employer must then offer an accommodation if reasonable, and has a continuing obligation if aware that an initial accommodation is failing and a further accommodation is needed. Scotch v. Art Institute of California (2009) 173 Cal.App.4th 986, 1013.

Because the employer is in a better position than the employee to identify and evaluate possible alternatives, it is the employer's responsibility during the interactive process to find any reasonable alternative(s). Although the plaintiff's complaint need not allege what reasonable alternative(s) could have been offered, by time of trial after discovery the plaintiff would have the burden of proving that one existed but was not offered by the employer. Id. at 1018-1019.

Plaintiff's complaint alleged that "Defendants were aware (in 2021) that her doctor told Plaintiff to avoid heavy lifting and repetitive, strenuous movements" but refused to accommodate Plaintiff [¶13c]; in March 2022 Plaintiff provided Defendants with her work restrictions (no standing for prolonged periods of time and no lifting heavy objects) from her doctor, and provided Defendants with her work restrictions and doctors' notes each time she visited the doctor" [¶13e]; that in March 2022 Plaintiff requested a reasonable accommodation to transfer positions within VUSD" and "was effectively denied this accommodation as VUSD failed to provide any response despite Plaintiff's repetitive requests" and thus had to work through the pain and take sick leave to recover periodically [¶13f]; and that by March 2023 "Plaintiff was still denied accommodation of any kind", causing her to have to take off work "often unpaid time, to recover" [¶13g]; and then, was called in to a meeting in March 2023 where she was informed by VUSD's HR director to return to work when fully capable, "without ever granting or acknowledging any kind of accommodation including leave of absence" [¶13h].

As to the 6th cause of action for failure to prevent:

Government Code §12940(k) identifies as actionable "For an employer, labor organization, employment agency, apprenticeship training program, or any training program leading to employment, to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring."

A failure to prevent cause of action is dependent upon a claim of actual discrimination (or harassment). Scotch, supra, 173 Cal.App.4th at 1021.

With the court overruling the demurrer to the 1st cause of action for disability discrimination, it must also overrule the demurrer to this failure to prevent cause of action.

Per CRC 3.1320(g), VUSD has 10 days to file its answer to the remainder of the complaint, or its default may be requested and entered.

JEFFREY BRIAN SHAW vs. ADIREN MARKUS VILLANUEVA
Case No. CU25-06634

Plaintiff's Motion to Compel Defendant's Further Responses to Special Interrogatories and Requests for Production

TENTATIVE RULING

The Parties are to appear.

CHRISTOPHER HOLBROOK; ET AL. vs. MICHAEL LOFY; ET AL.
Case No. CU26-02009

Defendants and Cross-Complainants BIRDS LANDING LLC, DANIEL CIRILLO and RICHARD CIRILLO Motion to Appear Pro Hac Vice

TENTATIVE RULING

The unopposed applications by Danny C. Lallis, Esq. and Jie Shi Chen, Esq. to appear pro hac vice are GRANTED.

MICHAEL BUFORD vs. G. MATTESON; ET AL.
Case No. FCS057847

Demurrer

TENTATIVE RULING

The parties are to appear. At the hearing, the Court's tentative ruling is as follows:

Defendant Matteson's demurrer is sustained without leave to amend.

Any claims for money or damages, either based on contract or for injury for which the public entity is liable, must first be presented to the public entity. (Gov. Code §§ 905, 945.4.) Compliance with the claims statutes is a condition precedent to maintaining an action against a public entity and failure to present a claim to the public entity is fatal to the suit. (*State of Cal. v. Superior Court* (2004) 32 Cal.4th 1234, 1240; *City of San Jose v. Superior Court* (1974) 12 Cal.3d 447, 454-455; *Sofranek v. County of Merced* (2007) 146 Cal.App.4th 1238, 1246; *Spencer v. Merced County Office of Educ.* (1997) 59 Cal.App.4th 1429, 1434-1435; *Taylor v. Mitzel* (1978) 82 Cal.App.3d 665, 672.) This claims presentation requirement applies equally to any claims against a public employee acting within the scope of his or her employment. (Gov. Code §§ 950.2, 950.6; *People ex rel. Harris v. Rizzo* (2013) 214 Cal.App.4th 921, 939.)

A plaintiff may be excused from the claim presentation requirement if a public entity frustrates a claimant's ability to comply. (*State of Cal. v. Superior Court* (2004) 32 Cal.4th 1234, 1245; *Ard v. County of Contra Costa* (2001) 93 Cal.App.4th 339, 346-347.) But, facts supporting estoppel "must be pleaded in the complaint with sufficient accuracy to disclose the facts relied upon and the plaintiff must prove all of the elements constituting it." (*Judelson v. Am. Metal Bearing Co.* (1948) 89 Cal.App.2d 256, 266.)

Plaintiff has not pleaded compliance with the claim presentation requirement of the Tort Claims Act, but instead alleged that he should be excused from the requirement because there was a quarantine that prevented him from being able to timely file or investigate his "complaint". However, Plaintiff has not sufficiently alleged facts

establishing that the nature or duration of the quarantine actually prevented him from submitting a claim to the Department of General Services within six months of accrual of his cause of action (Gov. Code § 911.2(a)) or from submitting an application to present a late claim within one year of accrual of his cause of action (Gov. Code § 911.4(a)).

Additionally, Defendant Matteson cannot be held liable for any act or omission “to promote the public health of the community by preventing disease or controlling the communication of disease within the community” (Gov. Code § 855.4(a)) or for any act or omission that was the result of the exercise of discretion vested in her (Gov. Code § 820.2).

Plaintiff has failed to show that it is reasonably possible to cure these defects by amendment. (*Blatty v. New York Times Co.* (1986) 42 Cal.3d 1033, 1040.)

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